

		An invoice from the Administrator is required to support the \$26,000 Administrator fee request. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendant.
9	30-2025-01522423 Macia vs. Quadient, Inc.	Plaintiff Rocio Macia’s (“Plaintiff”) Motion to Compel Further Responses from Defendant Quadient, Inc. (“Defendant”) to Form Interrogatories-Employment Law (Set One) and Plaintiff’s Motion to Compel Further Responses from Defendant to Form Interrogatories-General (Set One) are GRANTED IN PART AND DENIED IN PART. IT IS ORDERED THAT within twenty (20) days of this ruling, Defendant shall provide complete, code-compliant further responses to Form Interrogatories-General (Set One) Nos. 12.1, 12.2, 12.3, 12.4, 12.5, 12.6, 12.7, 13.1, and Form Interrogatories-Employment (Set One) No. 215.1, based on Plaintiff’s clarified definition of the term “INCIDENT” as used in these form interrogatories. As a threshold matter, Defendant argues that Plaintiff failed to adequately meet and confer. However, Plaintiff’s counsel sent a meet-and-confer letter to Defendant on May 28, 2026 outlining the discovery disputes, and Defendant’s counsel admits to failing to respond in time prior to the deadline for Plaintiff to file these motions. The court finds that Plaintiff has satisfied the pre-filing meet-and-confer requirements for these motions. <u>General Form Interrogatories</u> Form Interrogatory No. 4.1 asks for information regarding Defendant’s relevant insurance policies. Defendant responded: Objection: This interrogatory is vague and ambiguous with respect to the term “incident”. Subject to and without waving the foregoing objection, Responding Party responds as follows: Yes. (a) Employment Practices Liability Insurance; (b) RSUI Indemnity Corp., 945 E. Paces Ferry Rd. Suite 1800, Atlanta, GA; (c) Quadient Holdings USA, Inc., who may be contacted through their attorneys of record; (d) EP708876; (e) \$2,000,000 (f) No; (g) Quadient Holdings USA, Inc., who may be contacted through their attorneys of record. While Defendant did assert an objection, this was a valid objection as evidenced by the fact that Plaintiff had to clarify the definition of “incident” in his meet-and-confer letter. Plaintiff clarified that “INCIDENT” means and includes the retaliation

	taken against Plaintiff Rocio Macia because she reported the posting of a job outside the company, and her exemption misclassification, together with all facts and circumstances surrounding that retaliation and that misclassification, including the acts, omissions, communications, decisions, and events occurring immediately before and after them.” Further, Defendant substantively responded to this Form Interrogatory. No further response is required. Form Interrogatory No. 8.1 asks “Do you attribute any loss of income or earning capacity to the INCIDENT?” Defendant responded: “Objection. This interrogatory is vague and ambiguous with respect to the term “incident”. Further, this interrogatory is unintelligible such that Responding Party cannot respond. Responding Party is a corporate entity and not a natural person to whom this interrogatory is properly directed. Moreover, Responding Party has made no claims for loss of income or earning capacity.” In essence, Defendant’s answer is “No” and the court finds that no further response required. Form Interrogatory No. 9.1 asks whether Defendant attributes any damages to the subject incident. Defendant responded: “Objection: This interrogatory is vague and ambiguous with respect to the term “incident”. Subject to and without waving the foregoing objection, Responding Party responds as follows: not applicable as Responding Party has made no claim for damages in this action.” As with Form Interrogatory No. 8.1, this response is essentially a “No,” and no further response is required. Form Interrogatory No. 12.1 asks for relevant witness information. Defendant responds: “Objection: This request is vague, ambiguous and overbroad with respect to the term “INCIDENT.” This request also calls for speculation as to what “INCIDENT” is being referred to. Accordingly, and as phrased, Defendant is unable to respond to this request.” While Plaintiff should have clarified the definition of the term “INCIDENT” in the initial discovery requests, in the interests of judicial efficiency, the court finds that a further response from Defendant is required based on Plaintiff’s clarified definition. Form Interrogatory No. 12.2 and 12.3 asks for witness information as to any interviews concerning the incident. Defendant responded: “Objection: This request is vague, ambiguous and overbroad with respect to the term “INCIDENT.” This request also calls for speculation as to what “INCIDENT” is being referred to. This request seeks information protected from
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	disclosure by the attorney-client privilege and work product doctrine. (See <i>Nacht & Lewis Architects, Inc. v. Superior Court</i> (1996) 47 Cal.App.4th 214.)” As with Form Interrogatory No. 12.1, in the interests of judicial efficiency, the court finds that a further response from Defendant is required as to Form Interrogatory Nos. 12.2 and 12.3 based on Plaintiff’s clarified definition of the term “INCIDENT.” To the extent Defendant withholds any responsive information based on attorney-client privilege, Defendant must provide grounds for asserting that information. The court notes that “the attorney-client privilege only protects disclosure of <i>communications</i> between the attorney and the client; it does not protect disclosure of underlying facts which may be referenced within a qualifying communication.” (<i>State Farm Fire & Cas. Co. v. Superior Ct.</i> (1997) 54 Cal. App. 4th 625, 639.) “Nor does the attorney-client privilege protect independent facts related to a communication; that a communication took place, and the time, date and participants in the communication.” (<i>Id.</i> at 640.) Form Interrogatory Nos. 12.4 and 12.5 seek photographs, films or videotapes, diagram, reproduction, or model relevant to the incident. Defendant responded to both: “Objection: This interrogatory is vague, ambiguous and overbroad with respect to the term “INCIDENT.” This interrogatory also calls for speculation as to what “INCIDENT” is being referred to. Accordingly, and as phrased, Responding Party is unable to respond to this interrogatory. Without waiving said objections Responding Party responds as follows: No.” As with Form Interrogatory No. 12.1, in the interests of judicial efficiency, the court finds that a further response from Defendant is required as to Form Interrogatory Nos. 12.4 and 12.5 based on Plaintiff’s clarified definition of the term “INCIDENT.” Form Interrogatory No. 12.6, 12.7 and 13.1 ask about any reports or inspections or surveillance regarding the subject incident. Defendant responded to both: “Objection: This interrogatory is vague, ambiguous and overbroad with respect to the term “INCIDENT.” This interrogatory also calls for speculation as to what “INCIDENT” is being referred to. Accordingly, and as phrased, Responding Party is unable to respond to this interrogatory.” As with Form Interrogatory No. 12.1, in the interests of judicial efficiency, the court finds that a further response from Defendant is required as to Form Interrogatory Nos. 12.6, 12.7 and 13.1 based on Plaintiff’s clarified definition of the term “INCIDENT.”
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		The court declines to make a ruling as to Form Interrogatory No. 15.1 as it was not included in Plaintiff's separate statement, and thus the court has no basis for making any ruling as to this discovery request. <u>Employment Form Interrogatories</u> Form Interrogatory No. 201.3(d) asks Defendant to identify any other adverse employment actions and requests Defendant to identify documents relied upon in making the other adverse employment actions. Defendant responded: "Objection: This interrogatory is vague, ambiguous, and overbroad. Subject to and without waving the foregoing objection, Responding Party responds as follows: Yes." As for documents, Defendant answered: "The April 16, 2024 Warning provided to Plaintiff, as well as Defendant's internal investigation documents." The court finds that Defendant's discovery response is adequate and no further response is required. Should Plaintiff seek further details regarding the specific documents, such information may be obtained through document production requests. Form Interrogatory No. 207.1 asks about internal written policies regarding how an employee can make a complaint similar to the complaints in this lawsuit. Defendant responded: "Objection: This interrogatory is vague and ambiguous as to the term 'complaint of the type that is the subject matter of this lawsuit.'". Subject to and without waiving this objections Responding Party responds as follows: Responding Party has no [sic] any internal written policy or regulation governing how former employees are to make complaints about the termination of their employment." The court finds that this response is adequate and no further response is required. The court declines to make a ruling as to Form Interrogatory No. 209.2 as it was not included in Plaintiff's separate statement, and thus the court has no basis for making any ruling as to this discovery request. Form Interrogatory No. 215.1 asks for contact information for witnesses who were interviewed regarding the adverse employment action. Defendant responded: "Objection: This interrogatory is vague, ambiguous, and overbroad. Further, this interrogatory seeks attorney work product in violation of Code of Civil Procedure sections 2018.020 and 2018.030. (See Nacht & Lewis Architects v. Superior Court (1996) 47 Cal.App.4th 214.)
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		This interrogatory seeks information subject to the attorney-client privilege which is broadly construed, and extends to “factual information” and “legal advice.” (See <i>Mitchell v. Superior Court</i> (1984) 37 Cal.3d 591, 601.) Moreover, this interrogatory seeks information that is not reasonably calculated to lead to the discovery of admissible evidence. (Code of Civ. Proc., § 2017.010.)” As with Form Interrogatory No. 12.1, in the interests of judicial efficiency, the court finds that a further response from Defendant is required as to Form Interrogatory No. 215.1 based on Plaintiff’s clarified definition of the term “INCIDENT.” The court also notes the limits of attorney-client privilege as discussed above. <u>Monetary Sanctions</u> The court DENIES both Plaintiff’s requests for monetary sanctions and Defendant’s requests for monetary sanctions, as both parties share fault in the discovery disputes and both have raised meritorious arguments. Plaintiff is ordered to give notice of this ruling to Defendant.
10	30-2026-01555557 Hernandez vs. Bellflower Skilled, LLC	<u>MOTION 1</u> Plaintiff Maria Elena Hernandez’s (“Plaintiff”) Motion to Compel Further Responses from Defendant Sun Mar Management Services (“Sun Mar”) to Request for Identification and Production of Documents (“RFP”), Set One is DENIED. “[A] civil litigant’s right to discovery is broad.” (<i>Yelp Inc. v. Superior Court</i> (2017) 17 Cal. App. 5th 1, 15.) “[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (CCP § 2017.010.) However, courts are also mindful of the “abuse of the discovery system,” and “misuses to which the discovery statutes are prone absent judicial consideration for the great burdens which may be imposed on parties and nonparties alike.” (<i>Calcor Space Facility, Inc. v. Superior Ct.</i> (1997) 53 Cal. App. 4th 216, 221.) “Courts must insist discovery devices be used as tools to facilitate litigation rather than as weapons to wage litigation.” (<i>Id.</i>) “These tools should be well calibrated; the lancet is to be preferred over the sledge hammer.” (<i>Id.</i>) “Because of the potential for promiscuous discovery imposing great burdens, even